



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2175: crimes; hostility towards victims; sentencing

Willoughby FLOOR AMENDMENT

1. Amends the predicate offenses that may have their sentencing enhanced.
2. Requires the trier of fact to *find beyond a reasonable doubt*, that the defendant committed the offense out of hostility towards the victim due to the victim's identity in a certain group, in order for the enhancement to be applied.
3. Removed political expression from the list of protected classes.
4. Decreases the enhancement to only be one year if the offense is a class 4, 5 or 6 felony; and two years if the offense is a class 2 or 3 felony.

WILLOUGHBY SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2175

I move the following SUBSTITUTE amendment to the JUDICIARY Committee Amendment to HOUSE BILL 2175 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 7, Arizona Revised Statutes, is
3 amended by adding section 13-722, to read:

4 13-722. Special sentencing provisions; offenses committed out
5 of malice towards the victim; exception

6 A. A PERSON WHO IS CONVICTED OF COMMITTING A FELONY VIOLATION OF
7 CHAPTER 11 OF THIS TITLE, SECTION 13-1204 [SUBSECTION A, PARAGRAPHS ONE
8 THROUGH SEVEN, OR PARAGRAPH 12,] OR 13-1602, CHAPTER 17 OF THIS TITLE OR
9 SECTION [13-2308.02, 13-2904 OR 13-2922] [13-2923 AND THE TRIER OF FACT
10 FINDS BEYOND A REASONABLE DOUBT THE OFFENSE WAS COMMITTED] OUT OF
11 HOSTILITY TOWARD A VICTIM BECAUSE OF THE VICTIM'S IDENTITY IN A GROUP
12 LISTED IN SECTION 41-1750, SUBSECTION A, PARAGRAPH 3 OR BECAUSE OF THE
13 DEFENDANT'S PERCEPTION OF THE VICTIM'S IDENTITY IN A GROUP LISTED IN
14 SECTION 41-1750, SUBSECTION A, PARAGRAPH 3 IS NOT ELIGIBLE FOR SUSPENSION
15 OF SENTENCE, PROBATION[, PARDON] OR RELEASE FROM CONFINEMENT ON ANY BASIS
16 EXCEPT AS AUTHORIZED BY SECTION 31-233, SUBSECTION A OR B UNTIL THE
17 SENTENCE IMPOSED BY THE COURT HAS BEEN SERVED, THE PERSON IS ELIGIBLE FOR
18 RELEASE PURSUANT TO SECTION 41-1604.07 OR THE SENTENCE IS COMMUTED. THE
19 PRESUMPTIVE, MINIMUM AND MAXIMUM SENTENCE FOR THE OFFENSE SHALL BE
20 INCREASED BY [THREE YEARS] [ONE YEAR] IF THE OFFENSE IS A CLASS 4, 5 OR 6
21 FELONY OR SHALL BE INCREASED BY [FIVE] [TWO] YEARS IF THE OFFENSE IS A
22 CLASS 2 OR 3 FELONY. THE ADDITIONAL SENTENCE IMPOSED PURSUANT TO THIS
23 SECTION IS IN ADDITION TO ANY ENHANCED SENTENCE THAT MAY BE APPLICABLE.

24 B. THIS SECTION DOES NOT APPLY TO A PERSON WHO IS CONVICTED OF A
25 VIOLATION OF SECTION 13-1203, SUBSECTION C OR SECTION 13-1602, SUBSECTION
26 C, PARAGRAPH 6.

1 C. THIS SECTION DOES NOT AFFECT OR LIMIT A PERSON'S CONSTITUTIONAL
2 RIGHT TO THE LAWFUL EXPRESSION OF FREE SPEECH OR OTHER RECOGNIZED RIGHTS
3 THAT ARE SECURED BY THE CONSTITUTION OR LAWS OF THIS STATE OR BY THE
4 CONSTITUTION OR LAWS OF THE UNITED STATES.

5 Sec. 2. Section 13-1203, Arizona Revised Statutes, is amended to
6 read:

7 13-1203. Assault; classification

8 A. A person commits assault by:

9 1. Intentionally, knowingly or recklessly causing any physical
10 injury to another person; or

11 2. Intentionally placing another person in reasonable apprehension
12 of imminent physical injury; or

13 3. Knowingly touching another person with the intent to injure,
14 insult or provoke such person.

15 B. Assault committed intentionally or knowingly pursuant to
16 subsection A, paragraph 1 is a class 1 misdemeanor. Assault committed
17 recklessly pursuant to subsection A, paragraph 1 is a class 2
18 misdemeanor. Assault committed pursuant to subsection A, paragraph 2 or 3
19 is a class 3 misdemeanor.

20 C. NOTWITHSTANDING SUBSECTION B OF THIS SECTION, ASSAULT COMMITTED
21 PURSUANT TO SUBSECTION A, PARAGRAPH 1 OF THIS SECTION IS A CLASS 6 FELONY
22 IF [THE TRIER OF FACT FINDS BEYOND A REASONABLE DOUBT] THE DEFENDANT
23 COMMITTED THE OFFENSE OUT OF HOSTILITY TOWARD THE VICTIM BECAUSE OF THE
24 VICTIM'S IDENTITY IN A GROUP LISTED IN SECTION 41-1750, SUBSECTION A,
25 PARAGRAPH 3 OR BECAUSE OF THE DEFENDANT'S PERCEPTION OF THE VICTIM'S
26 IDENTITY IN A GROUP LISTED IN SECTION 41-1750, SUBSECTION A, PARAGRAPH 3.
27 THIS SUBSECTION DOES NOT AFFECT OR LIMIT A PERSON'S CONSTITUTIONAL RIGHT
28 TO THE LAWFUL EXPRESSION OF FREE SPEECH OR OTHER RECOGNIZED RIGHTS THAT
29 ARE SECURED BY THE CONSTITUTION OR LAWS OF THIS STATE OR BY THE
30 CONSTITUTION OR LAWS OF THE UNITED STATES.

31 Sec. 3. Section 13-1602, Arizona Revised Statutes, is amended to
32 read:

33 13-1602. Criminal damage; classification

34 A. A person commits criminal damage by:

35 1. Recklessly defacing or damaging property of another person.

36 2. Recklessly tampering with property of another person so as
37 substantially to impair its function or value.

38 3. Recklessly damaging property of a utility.

39 4. Recklessly physically obstructing a passageway in such a manner
40 as to deprive livestock of access to the only reasonably available water.

41 5. Recklessly drawing or inscribing a message, slogan, sign or
42 symbol that is made on any public or private building, structure or
43 surface, except the ground, and that is made without permission of the
44 owner.

45 6. Intentionally tampering with utility property.

46 ~~B.~~ B. For a violation of subsection A, paragraph 5 of this
47 section, in determining the amount of damage to property, damages include

1 reasonable labor costs of any kind, reasonable material costs of any kind
2 and any reasonable costs that are attributed to equipment that is used to
3 abate or repair the damage to the property.

4 ~~B.~~ C. Criminal damage is punished as follows:

5 1. Criminal damage is a class 4 felony if the person recklessly
6 damages property of another in an amount of \$10,000 or more.

7 2. Criminal damage is a class 4 felony if the person recklessly
8 damages the property of a utility in an amount of \$5,000 or more or if the
9 person intentionally tampers with utility property and the damage causes
10 an imminent safety hazard to any person.

11 3. Criminal damage is a class 5 felony if the person recklessly
12 damages property of another in an amount of \$2,000 or more but less than
13 \$10,000 or if the damage is inflicted to promote, further or assist any
14 criminal street gang or criminal syndicate with the intent to intimidate
15 and the person is not subject to paragraph 1 or 2 of this subsection.

16 4. Criminal damage is a class 6 felony if the person recklessly
17 damages property of another in an amount of \$1,000 or more but less than
18 \$2,000.

19 5. Criminal damage is a class 1 misdemeanor if the person
20 recklessly damages property of another in an amount of more than \$250 but
21 less than \$1,000.

22 6. NOTWITHSTANDING PARAGRAPH 5 OF THIS SUBSECTION, CRIMINAL DAMAGE
23 IS A CLASS 6 FELONY IF THE DEFENDANT RECKLESSLY DAMAGES PROPERTY OF
24 ANOTHER IN AN AMOUNT OF MORE THAN \$250 BUT LESS THAN \$1,000 AND [COMMITTS]
25 [THE TRIER OF FACT FINDS BEYOND A REASONABLE DOUBT THE DEFENDANT
26 COMMITTED] THE OFFENSE OUT OF HOSTILITY TOWARD THE VICTIM BECAUSE OF THE
27 VICTIM'S IDENTITY IN A GROUP LISTED IN SECTION 41-1750, SUBSECTION A,
28 PARAGRAPH 3 OR BECAUSE OF THE DEFENDANT'S PERCEPTION OF THE VICTIM'S
29 IDENTITY IN A GROUP LISTED IN SECTION 41-1750, SUBSECTION A, PARAGRAPH
30 3. THIS PARAGRAPH DOES NOT AFFECT OR LIMIT A PERSON'S CONSTITUTIONAL
31 RIGHT TO THE LAWFUL EXPRESSION OF FREE SPEECH OR OTHER RECOGNIZED RIGHTS
32 THAT ARE SECURED BY THE CONSTITUTION OR LAWS OF THIS STATE OR BY THE
33 CONSTITUTION OR LAWS OF THE UNITED STATES.

34 ~~6.~~ 7. In all other cases criminal damage is a class 2 misdemeanor.

35 Sec. 4. Section 13-4903, Arizona Revised Statutes, is amended to
36 read:

37 13-4903. Use of force; armed nuclear security guards

38 A. An armed nuclear security guard is justified in using physical
39 force against another person at a commercial nuclear generating station or
40 structure or fenced yard of a commercial nuclear generating station if the
41 armed nuclear security guard reasonably believes that such force is
42 necessary to prevent or terminate the commission or attempted commission
43 of criminal damage under section 13-1602, subsection A, paragraph 3 and
44 subsection ~~B.~~ C, paragraph 1 or 2, misconduct involving weapons under
45 section 13-3102, subsection A, paragraph 13 or criminal trespass on a
46 commercial nuclear generating station under section 13-4902.

1 B. Notwithstanding sections 13-403, 13-404, 13-405, 13-406, 13-408,
2 13-409, 13-410 and 13-411, an armed nuclear security guard is justified in
3 using physical force up to and including deadly physical force against
4 another person at a commercial nuclear generating station or structure or
5 fenced yard of a commercial nuclear generating station if the armed
6 nuclear security guard reasonably believes that such force is necessary
7 to:

8 1. Prevent the commission of manslaughter under section 13-1103,
9 second or first degree murder under section 13-1104 or 13-1105, aggravated
10 assault under section 13-1204, subsection A, paragraph 1 or 2, kidnapping
11 under section 13-1304, burglary in the second or first degree under
12 section 13-1507 or 13-1508, arson of a structure or property under section
13 13-1703, arson of an occupied structure under section 13-1704, armed
14 robbery under section 13-1904 or an act of terrorism under section
15 13-2308.01.

16 2. Defend oneself or a third person from the use or imminent use of
17 deadly physical force.

18 C. Notwithstanding any other provision of this chapter, an armed
19 nuclear security guard is justified in threatening to use physical or
20 deadly physical force if and to the extent a reasonable armed nuclear
21 security guard believes it necessary to protect oneself or others against
22 another person's potential use of physical force or deadly physical force.

23 D. An armed nuclear security guard is not subject to civil
24 liability for engaging in conduct that is otherwise justified pursuant to
25 this chapter.

26 Sec. 5. Section 13-4904, Arizona Revised Statutes, is amended to
27 read:

28 13-4904. Detention authority; armed nuclear security guards

29 A. An armed nuclear security guard, with reasonable belief, may
30 detain in or on a commercial nuclear generating station or a structure or
31 fenced yard of a commercial nuclear generating station in a reasonable
32 manner and for a reasonable time any person who is suspected of committing
33 or attempting to commit manslaughter under section 13-1103, second or
34 first degree murder under section 13-1104 or 13-1105, aggravated assault
35 under section 13-1204, subsection A, paragraph 1 or 2, kidnapping under
36 section 13-1304, burglary in the second or first degree under section
37 13-1507 or 13-1508, criminal damage under section 13-1602, subsection A,
38 paragraph 3 and subsection ~~B~~ C, paragraph 1 or 2, arson of a structure or
39 property under section 13-1703, arson of an occupied structure under
40 section 13-1704, armed robbery under section 13-1904, an act of terrorism
41 under section 13-2308.01, misconduct involving weapons under section
42 13-3102, subsection A, paragraph 13 or criminal trespass on a commercial
43 nuclear generating station under section 13-4902 for the purpose of
44 summoning a law enforcement officer.

45 B. Reasonable belief of an armed nuclear security guard is a
46 defense to a civil or criminal action against an armed nuclear security

1 guard for false arrest, false or unlawful imprisonment or wrongful
2 detention.

3 Sec. 6. Section 41-1750, Arizona Revised Statutes, is amended to
4 read:

5 41-1750. Central state repository; department of public
6 safety; duties; funds; accounts; definitions

7 A. The department is responsible for the effective operation of the
8 central state repository in order to collect, store and disseminate
9 complete and accurate Arizona criminal history records and related
10 criminal justice information. The department may procure criminal history
11 records and related criminal justice information for violations that are
12 not listed in this section. The department shall:

13 1. Procure from all criminal justice agencies in this state
14 accurate and complete personal identification data, fingerprints, charges,
15 process control numbers and dispositions and such other information as may
16 be pertinent to all persons who have been charged with, arrested for,
17 convicted of or summoned to court as a criminal defendant for any of the
18 following:

19 (a) A felony offense or an offense involving domestic violence as
20 defined in section 13-3601.

21 (b) A violation of title 13, chapter 14 or title 28, chapter 4.

22 (c) An offense listed in:

23 (i) Section 32-2422, subsection A, paragraph 4.

24 (ii) Section 32-2441, paragraph 4.

25 (iii) Section 32-2612, subsection A, paragraph 4.

26 (iv) Section 32-2622, subsection A, paragraph 4.

27 (v) Section 41-1758.03, subsections B and C.

28 (vi) Section 41-1758.07, subsections B and C.

29 2. Collect information concerning the number and nature of offenses
30 known to have been committed in this state and of the legal steps taken in
31 connection with these offenses, such other information that is useful in
32 the study of crime and in the administration of criminal justice and all
33 other information deemed necessary to operate the statewide uniform crime
34 reporting program and to cooperate with the federal government uniform
35 crime reporting program.

36 3. Collect information concerning criminal offenses that manifest
37 evidence of prejudice based on race, color, religion, national origin,
38 sexual orientation, gender, ~~[POLITICAL EXPRESSION OR]~~ POLITICAL
39 AFFILIATION, antisemitism or disability.

40 4. Cooperate with the central state repositories in other states
41 and with the appropriate agency of the federal government in the exchange
42 of information pertinent to violators of the law.

43 5. Ensure the rapid exchange of information concerning the
44 commission of crime and the detection of violators of the law among the
45 criminal justice agencies of other states and of the federal government.

1 6. Furnish assistance to peace officers throughout this state in
2 crime scene investigation for the detection of latent fingerprints and in
3 the comparison of latent fingerprints.

4 7. Conduct periodic operational audits of the central state
5 repository and of a representative sample of other agencies that
6 contribute records to or receive criminal justice information from the
7 central state repository or through the Arizona criminal justice
8 information system.

9 8. Establish and enforce the necessary physical and system
10 safeguards to ensure that the criminal justice information maintained and
11 disseminated by the central state repository or through the Arizona
12 criminal justice information system is appropriately protected from
13 unauthorized inquiry, modification, destruction or dissemination as
14 required by this section.

15 9. Aid and encourage coordination and cooperation among criminal
16 justice agencies through the statewide and interstate exchange of criminal
17 justice information.

18 10. Provide training and proficiency testing on the use of criminal
19 justice information to agencies receiving information from the central
20 state repository or through the Arizona criminal justice information
21 system.

22 11. Operate and maintain the Arizona automated fingerprint
23 identification system established by section 41-2411.

24 12. Provide criminal history record information to the
25 fingerprinting division for the purpose of screening applicants for
26 fingerprint clearance cards.

27 B. The director may establish guidelines for the submission and
28 retention of criminal justice information as deemed useful for the study
29 or prevention of crime and for the administration of criminal justice.

30 C. Criminal justice agencies may provide criminal history records
31 and related criminal justice information for violations that are not
32 listed in this section. Except for the requirements listed in subsection
33 U of this section, the chief officers of criminal justice agencies of this
34 state or its political subdivisions shall provide to the central state
35 repository fingerprints and information concerning personal identification
36 data, descriptions, crimes for which persons are arrested, process control
37 numbers and dispositions and such other information, including other
38 biometric data, as may be pertinent to all persons who have been charged
39 with, arrested for, convicted of or summoned to court as criminal
40 defendants for any of the following:

41 1. Felony offenses or offenses involving domestic violence as
42 defined in section 13-3601.

43 2. Violations of title 13, chapter 14 or title 28, chapter 4 that
44 have occurred in this state.

45 3. An offense listed in:

46 (a) Section 32-2422, subsection A, paragraph 4.

47 (b) Section 32-2441, paragraph 4.

1 (c) Section 32-2612, subsection A, paragraph 4.

2 (d) Section 32-2622, subsection A, paragraph 4.

3 (e) Section 41-1758.03, subsections B and C.

4 (f) Section 41-1758.07, subsections B and C.

5 D. The chief officers of law enforcement agencies of this state or
6 its political subdivisions shall provide to the department such
7 information as necessary to operate the statewide uniform crime reporting
8 program and to cooperate with the federal government uniform crime
9 reporting program.

10 E. The chief officers of criminal justice agencies of this state or
11 its political subdivisions shall comply with the training and proficiency
12 testing guidelines as required by the department to comply with the
13 federal national crime information center mandates.

14 F. The chief officers of criminal justice agencies of this state or
15 its political subdivisions also shall provide to the department
16 information concerning crimes that manifest evidence of prejudice based on
17 race, color, religion, national origin, sexual orientation, gender,
18 antisemitism or disability.

19 G. The director shall authorize the exchange of criminal justice
20 information between the central state repository, or through the Arizona
21 criminal justice information system, whether directly or through any
22 intermediary, only as follows:

23 1. With criminal justice agencies of the federal government, Indian
24 tribes, this state or its political subdivisions and other states, on
25 request by the chief officers of such agencies or their designated
26 representatives, specifically for the purposes of the administration of
27 criminal justice and for evaluating the fitness of current and prospective
28 criminal justice employees. Fingerprints submitted pursuant to this
29 paragraph may be searched through the department and the federal bureau of
30 investigation to conduct criminal history records checks. The department
31 may conduct criminal history records checks through state and federal rap
32 back services for the purpose of updating the status of current criminal
33 justice employees or volunteers and may notify the criminal justice agency
34 of the results of the records check. The department is authorized to
35 submit fingerprints to the federal bureau of investigation to be retained
36 for the purpose of being searched by future submissions to the federal
37 bureau of investigation, including latent fingerprint searches. The
38 department may retain fingerprints submitted pursuant to this paragraph
39 for the purpose of being searched by future submissions to the department,
40 including latent fingerprint searches.

41 2. With any noncriminal justice agency pursuant to a statute,
42 ordinance or executive order that specifically authorizes the noncriminal
43 justice agency to receive criminal history record information for the
44 purpose of evaluating the fitness of current or prospective licensees,
45 employees, contract employees or volunteers, on submission of the
46 subject's fingerprints and the prescribed fee. Each statute, ordinance,
47 or executive order that authorizes noncriminal justice agencies to receive

1 criminal history record information for these purposes shall identify the
2 specific categories of licensees, employees, contract employees or
3 volunteers and shall require that fingerprints of the specified
4 individuals be submitted in conjunction with such requests for criminal
5 history record information. Fingerprints submitted pursuant to this
6 paragraph may be searched through the department and the federal bureau of
7 investigation to conduct criminal history records checks. The department
8 may conduct criminal history records checks through state and federal rap
9 back services for the purpose of updating the status of current licensees,
10 employees, contract employees or volunteers and may notify the noncriminal
11 justice agency of the results of the records check. The department is
12 authorized to submit fingerprints to the federal bureau of investigation
13 to be retained for the purpose of being searched by future submissions to
14 the federal bureau of investigation, including latent fingerprint
15 searches. The department is authorized to retain fingerprints submitted
16 pursuant to this paragraph for the purpose of being searched by future
17 submissions to the department, including latent fingerprint searches.

18 3. With the board of fingerprinting for the purpose of conducting
19 good cause exceptions pursuant to section 41-619.55 and central registry
20 exceptions pursuant to section 41-619.57.

21 4. With any individual for any lawful purpose on submission of the
22 subject of record's fingerprints and the prescribed fee.

23 5. With the governor, if the governor elects to become actively
24 involved in the investigation of criminal activity or the administration
25 of criminal justice in accordance with the governor's constitutional duty
26 to ensure that the laws are faithfully executed or as needed to carry out
27 the other responsibilities of the governor's office.

28 6. With regional computer centers that maintain authorized
29 computer-to-computer interfaces with the department, that are criminal
30 justice agencies or under the management control of a criminal justice
31 agency and that are established by a statute, ordinance or executive order
32 to provide automated data processing services to criminal justice agencies
33 specifically for the purposes of the administration of criminal justice or
34 evaluating the fitness of regional computer center employees who have
35 access to the Arizona criminal justice information system and the national
36 crime information center system.

37 7. With an individual who asserts a belief that criminal history
38 record information relating to the individual is maintained by an agency
39 or in an information system in this state that is subject to this section.
40 On submission of fingerprints, the individual may review this information
41 for the purpose of determining its accuracy and completeness by making
42 application to the agency operating the system. Rules adopted under this
43 section shall include provisions for administrative review and necessary
44 correction of any inaccurate or incomplete information. The review and
45 challenge process authorized by this paragraph is limited to criminal
46 history record information.

1 8. With individuals and agencies pursuant to a specific agreement
2 with a criminal justice agency to provide services required for the
3 administration of criminal justice pursuant to that agreement if the
4 agreement specifically authorizes access to data, limits the use of data
5 to purposes for which given and ensures the security and confidentiality
6 of the data consistent with this section.

7 9. With individuals and agencies for the express purpose of
8 research, evaluative or statistical activities pursuant to an agreement
9 with a criminal justice agency if the agreement specifically authorizes
10 access to data, limits the use of data to research, evaluative or
11 statistical purposes and ensures the confidentiality and security of the
12 data consistent with this section.

13 10. With the auditor general for audit purposes.

14 11. With central state repositories of other states for noncriminal
15 justice purposes for dissemination in accordance with the laws of those
16 states.

17 12. On submission of the fingerprint card, with the department of
18 child safety and a tribal social services agency to provide criminal
19 history record information on prospective adoptive parents for the purpose
20 of conducting the preadoption certification investigation under title 8,
21 chapter 1, article 1 if the department of economic security is conducting
22 the investigation, or with an agency or a person appointed by the court,
23 if the agency or person is conducting the investigation. Information
24 received under this paragraph shall only be used for the purposes of the
25 preadoption certification investigation.

26 13. With the department of child safety, a tribal social services
27 agency and the superior court for the purpose of evaluating the fitness of
28 custodians or prospective custodians of juveniles, including parents,
29 relatives and prospective guardians. Information received under this
30 paragraph shall only be used for the purposes of that evaluation. The
31 information shall be provided on submission of either:

32 (a) The fingerprint card.

33 (b) The name, date of birth and social security number of the
34 person.

35 14. On submission of a fingerprint card, provide criminal history
36 record information to the superior court for the purpose of evaluating the
37 fitness of investigators appointed under section 14-5303 or 14-5407,
38 guardians appointed under section 14-5206 or 14-5304 or conservators
39 appointed under section 14-5401.

40 15. With the supreme court to provide criminal history record
41 information on prospective fiduciaries pursuant to section 14-5651.

42 16. With the department of juvenile corrections to provide criminal
43 history record information pursuant to section 41-2814.

44 17. On submission of the fingerprint card, provide criminal history
45 record information to the Arizona peace officer standards and training
46 board or a board certified law enforcement academy to evaluate the fitness
47 of prospective cadets.

1 18. With the internet sex offender website database established
2 pursuant to section 13-3827.

3 19. With licensees of the United States nuclear regulatory
4 commission for the purpose of determining whether an individual should be
5 granted unescorted access to the protected area of a commercial nuclear
6 generating station on submission of the subject of record's fingerprints
7 and the prescribed fee.

8 20. With the state board of education for the purpose of evaluating
9 the fitness of a certificated educator, an applicant for a teaching or
10 administrative certificate or a noncertificated person as defined in
11 section 15-505 if the state board of education or its employees or agents
12 have reasonable suspicion that the educator or person engaged in conduct
13 that would be a criminal violation of the laws of this state or was
14 involved in immoral or unprofessional conduct or that the applicant
15 engaged in conduct that would warrant disciplinary action if the applicant
16 were certificated at the time of the alleged conduct. The information
17 shall be provided on the submission of either:

18 (a) The fingerprint card.

19 (b) The name, date of birth and social security number of the
20 person.

21 21. With each school district and charter school in this state.
22 The department of education and the state board for charter schools shall
23 provide the department of public safety with a current list of email
24 addresses for each school district and charter school in this state and
25 shall periodically provide the department of public safety with updated
26 email addresses. If the department of public safety is notified that a
27 person who is required to have a fingerprint clearance card to be employed
28 by or to engage in volunteer activities at a school district or charter
29 school has been arrested for or convicted of an offense listed in section
30 41-1758.03, subsection B or has been arrested for or convicted of an
31 offense that amounts to unprofessional conduct under section 15-550, the
32 department of public safety shall notify each school district and charter
33 school in this state that the person's fingerprint clearance card has been
34 suspended or revoked.

35 22. With a tribal social services agency and the department of
36 child safety as provided by law, which currently is the Adam Walsh child
37 protection and safety act of 2006 (42 United States Code section 16961),
38 for the purposes of investigating or responding to reports of child abuse,
39 neglect or exploitation. Information received pursuant to this paragraph
40 from the national crime information center, the interstate identification
41 index and the Arizona criminal justice information system network shall
42 only be used for the purposes of investigating or responding as prescribed
43 in this paragraph. The information shall be provided on submission to the
44 department of public safety of either:

45 (a) The fingerprints of the person being investigated.

46 (b) The name, date of birth and social security number of the
47 person.

1 23. With a nonprofit organization that interacts with children or
2 vulnerable adults for the lawful purpose of evaluating the fitness of all
3 current and prospective employees, contractors and volunteers of the
4 organization. The criminal history record information shall be provided
5 on submission of the applicant's fingerprint card and the prescribed fee.
6 Fingerprints submitted pursuant to this paragraph may be searched by the
7 department to conduct state criminal history records checks.

8 24. With the superior court for the purpose of determining an
9 individual's eligibility for substance abuse and treatment courts in a
10 family or juvenile case.

11 25. With the governor to provide criminal history record
12 information on prospective gubernatorial nominees, appointees and
13 employees as provided by law.

14 H. The director shall adopt rules necessary to execute this
15 section.

16 I. The director, in the manner prescribed by law, shall remove and
17 destroy records that the director determines are no longer of value in the
18 detection or prevention of crime.

19 J. The director shall establish a fee in an amount necessary to
20 cover the cost of federal noncriminal justice fingerprint processing for
21 criminal history record information checks that are authorized by law for
22 noncriminal justice employment, licensing or other lawful purposes. An
23 additional fee may be charged by the department for state noncriminal
24 justice fingerprint processing. Fees submitted to the department for
25 state noncriminal justice fingerprint processing are not refundable.

26 K. The director shall establish a fee in an amount necessary to
27 cover the cost of processing copies of department reports, eight by ten
28 inch black and white photographs or eight by ten inch color photographs of
29 traffic accident scenes.

30 L. Except as provided in subsection 0 of this section, each agency
31 authorized by this section may charge a fee, in addition to any other fees
32 prescribed by law, in an amount necessary to cover the cost of state and
33 federal noncriminal justice fingerprint processing for criminal history
34 record information checks that are authorized by law for noncriminal
35 justice employment, licensing or other lawful purposes.

36 M. A fingerprint account within the records processing fund is
37 established for the purpose of separately accounting for the collection
38 and payment of fees for noncriminal justice fingerprint processing by the
39 department. Monies collected for this purpose shall be credited to the
40 account, and payments by the department to the United States for federal
41 noncriminal justice fingerprint processing shall be charged against the
42 account. Monies in the account not required for payment to the United
43 States shall be used by the department in support of the department's
44 noncriminal justice fingerprint processing duties. At the end of each
45 fiscal year, any balance in the account not required for payment to the
46 United States or to support the department's noncriminal justice
47 fingerprint processing duties reverts to the state general fund.

1 N. A records processing fund is established for the purpose of
2 separately accounting for the collection and payment of fees for
3 department reports and photographs of traffic accident scenes processed by
4 the department. Monies collected for this purpose shall be credited to
5 the fund and shall be used by the department in support of functions
6 related to providing copies of department reports and photographs. At the
7 end of each fiscal year, any balance in the fund not required for support
8 of the functions related to providing copies of department reports and
9 photographs reverts to the state general fund.

10 O. The department of child safety may pay from appropriated monies
11 the cost of federal fingerprint processing or federal criminal history
12 record information checks that are authorized by law for employees and
13 volunteers of the department, guardians pursuant to section 8-453,
14 subsection A, paragraph 6, the licensing of foster parents or the
15 certification of adoptive parents.

16 P. The director shall adopt rules that provide for:

17 1. The collection and disposition of fees pursuant to this section.

18 2. The refusal of service to those agencies that are delinquent in
19 paying these fees.

20 Q. The director shall ensure that the following limitations are
21 observed regarding dissemination of criminal justice information obtained
22 from the central state repository or through the Arizona criminal justice
23 information system:

24 1. Any criminal justice agency that obtains criminal justice
25 information from the central state repository or through the Arizona
26 criminal justice information system assumes responsibility for the
27 security of the information and shall not secondarily disseminate this
28 information to any individual or agency not authorized to receive this
29 information directly from the central state repository or originating
30 agency.

31 2. Dissemination to an authorized agency or individual may be
32 accomplished by a criminal justice agency only if the dissemination is for
33 criminal justice purposes in connection with the prescribed duties of the
34 agency and not in violation of this section.

35 3. Criminal history record information disseminated to noncriminal
36 justice agencies or to individuals shall be used only for the purposes for
37 which it was given. Secondary dissemination is prohibited unless
38 otherwise authorized by law.

39 4. The existence or nonexistence of criminal history record
40 information shall not be confirmed to any individual or agency not
41 authorized to receive the information itself.

1 5. Criminal history record information to be released for
2 noncriminal justice purposes to agencies of other states shall only be
3 released to the central state repositories of those states for
4 dissemination in accordance with the laws of those states.

5 6. Criminal history record information shall be released to
6 noncriminal justice agencies of the federal government pursuant to the
7 terms of the federal security clearance information act (P.L. 99-169).

8 R. This section and the rules adopted under this section apply to
9 all agencies and individuals collecting, storing or disseminating criminal
10 justice information processed by manual or automated operations if the
11 collection, storage or dissemination is funded in whole or in part with
12 monies made available by the law enforcement assistance administration
13 after July 1, 1973, pursuant to title I of the crime control act of 1973,
14 and to all agencies that interact with or receive criminal justice
15 information from or through the central state repository and through the
16 Arizona criminal justice information system.

17 S. This section does not apply to criminal history record
18 information contained in:

19 1. Posters, arrest warrants, announcements or lists for identifying
20 or apprehending fugitives or wanted persons.

21 2. Original records of entry such as police blotters maintained by
22 criminal justice agencies, compiled chronologically and required by law or
23 long-standing custom to be made public if these records are organized on a
24 chronological basis.

25 3. Transcripts or records of judicial proceedings if released by a
26 court or legislative or administrative proceedings.

27 4. Announcements of executive clemency or pardon.

28 5. Computer databases, other than the Arizona criminal justice
29 information system, that are specifically designed for community
30 notification of an offender's presence in the community pursuant to
31 section 13-3825 or for public informational purposes authorized by section
32 13-3827.

33 T. This section does not prevent a criminal justice agency from
34 disclosing to the public criminal history record information that is
35 reasonably contemporaneous to the event for which an individual is
36 currently within the criminal justice system, including information noted
37 on traffic accident reports concerning citations, blood alcohol tests or
38 arrests made in connection with the traffic accident being investigated.

39 U. In order to ensure that complete and accurate criminal history
40 record information is maintained and disseminated by the central state
41 repository:

42 1. The booking agency shall take legible ten-print fingerprints of
43 all persons who are arrested for offenses listed in subsection C of this
44 section. The booking agency shall obtain a process control number and
45 provide to the person fingerprinted a document that indicates proof of the
46 fingerprinting and that informs the person that the document must be
47 presented to the court.

1 2. Except as provided in paragraph 3 of this subsection, if a
2 person is summoned to court as a result of an indictment or complaint for
3 an offense listed in subsection C of this section, the court shall order
4 the person to appear before the county sheriff and provide legible
5 ten-print fingerprints. The county sheriff shall obtain a process control
6 number and provide a document to the person fingerprinted that indicates
7 proof of the fingerprinting and that informs the person that the document
8 must be presented to the court. For the purposes of this paragraph,
9 "summoned" includes a written promise to appear by the defendant on a
10 uniform traffic ticket and complaint.

11 3. If a person is arrested for a misdemeanor offense listed in
12 subsection C of this section by a city or town law enforcement agency, the
13 person shall appear before the law enforcement agency that arrested the
14 defendant and provide legible ten-print fingerprints. The law enforcement
15 agency shall obtain a process control number and provide a document to the
16 person fingerprinted that indicates proof of the fingerprinting and that
17 informs the person that the document must be presented to the court.

18 4. The mandatory fingerprint compliance form shall contain the
19 following information:

20 (a) Whether ten-print fingerprints have been obtained from the
21 person.

22 (b) Whether a process control number was obtained.

23 (c) The offense or offenses for which the process control number
24 was obtained.

25 (d) Any report number of the arresting authority.

26 (e) Instructions on reporting for ten-print fingerprinting,
27 including available times and locations for reporting for ten-print
28 fingerprinting.

29 (f) Instructions that direct the person to provide the form to the
30 court at the person's next court appearance.

31 5. Within ten days after a person is fingerprinted, the arresting
32 authority or agency that took the fingerprints shall forward the
33 fingerprints to the department in the manner or form required by the
34 department.

35 6. On the issuance of a summons for a defendant who is charged with
36 an offense listed in subsection C of this section, the summons shall
37 direct the defendant to provide ten-print fingerprints to the appropriate
38 law enforcement agency.

39 7. At the initial appearance or on the arraignment of a summoned
40 defendant who is charged with an offense listed in subsection C of this
41 section, if the person does not present a completed mandatory fingerprint
42 compliance form to the court or if the court has not received the process
43 control number, the court shall order that within twenty calendar days the
44 defendant be ten-print fingerprinted at a designated time and place by the
45 appropriate law enforcement agency.

46 8. If the defendant fails to present a completed mandatory
47 fingerprint compliance form or if the court has not received the process

1 control number, the court, on its own motion, may remand the defendant
2 into custody for ten-print fingerprinting. If otherwise eligible for
3 release, the defendant shall be released from custody after being
4 ten-print fingerprinted.

5 9. In every criminal case in which the defendant is incarcerated or
6 fingerprinted as a result of the charge, an originating law enforcement
7 agency or prosecutor, within forty days of the disposition, shall advise
8 the central state repository of all dispositions concerning the
9 termination of criminal proceedings against an individual arrested for an
10 offense specified in subsection C of this section. This information shall
11 be submitted on a form or in a manner required by the department.

12 10. Dispositions resulting from formal proceedings in a court
13 having jurisdiction in a criminal action against an individual who is
14 arrested for an offense specified in subsection C of this section or
15 section 8-341, subsection Q, paragraph 3 shall be reported to the central
16 state repository within forty days of the date of the disposition. This
17 information shall be submitted on a form or in a manner specified by rules
18 approved by the supreme court.

19 11. The state department of corrections or the department of
20 juvenile corrections, within forty days, shall advise the central state
21 repository that it has assumed supervision of a person convicted of an
22 offense specified in subsection C of this section or section 8-341,
23 subsection Q, paragraph 3. The state department of corrections or the
24 department of juvenile corrections shall also report dispositions that
25 occur thereafter to the central state repository within forty days of the
26 date of the dispositions. This information shall be submitted on a form
27 or in a manner required by the department of public safety.

28 12. Each criminal justice agency shall query the central state
29 repository before dissemination of any criminal history record information
30 to ensure the completeness of the information. Inquiries shall be made
31 before any dissemination except in those cases in which time is of the
32 essence and the repository is technically incapable of responding within
33 the necessary time period. If time is of the essence, the inquiry shall
34 still be made and the response shall be provided as soon as possible.

35 V. The director shall adopt rules specifying that any agency that
36 collects, stores or disseminates criminal justice information that is
37 subject to this section shall establish effective security measures to
38 protect the information from unauthorized access, disclosure, modification
39 or dissemination. The rules shall include reasonable safeguards to
40 protect the affected information systems from fire, flood, wind, theft,
41 sabotage or other natural or man-made hazards or disasters.

42 W. The department shall make available to agencies that contribute
43 to, or receive criminal justice information from, the central state
44 repository or through the Arizona criminal justice information system a
45 continuing training program in the proper methods for collecting, storing
46 and disseminating information in compliance with this section.

1 X. This section does not create a cause of action or a right to
2 bring an action including an action based on discrimination due to sexual
3 orientation.

4 Y. The definition prescribed in subsection Z, paragraph 3 of this
5 section does not diminish or infringe on any rights protected under the
6 first amendment to the United States constitution or the Arizona
7 constitution.

8 Z. For the purposes of this section:

9 1. "Administration of criminal justice" means performance of the
10 detection, apprehension, detention, pretrial release, posttrial release,
11 prosecution, adjudication, correctional supervision or rehabilitation of
12 criminal offenders. Administration of criminal justice includes
13 enforcement of criminal traffic offenses and civil traffic violations,
14 including parking violations, when performed by a criminal justice agency.
15 Administration of criminal justice also includes criminal identification
16 activities and the collection, storage and dissemination of criminal
17 history record information.

18 2. "Administrative records" means records that contain adequate and
19 proper documentation of the organization, functions, policies, decisions,
20 procedures and essential transactions of the agency and that are designed
21 to furnish information to protect the rights of this state and of persons
22 directly affected by the agency's activities.

23 3. "Antisemitism" includes the definition of antisemitism that was
24 adopted by the international holocaust remembrance alliance on May 26,
25 2016 and that has been adopted by the United States department of state,
26 including the contemporary examples of antisemitism identified in the
27 adopted definition.

28 4. "Arizona criminal justice information system" or "system" means
29 the statewide information system managed by the director for the
30 collection, processing, preservation, dissemination and exchange of
31 criminal justice information and includes the electronic equipment,
32 facilities, procedures and agreements necessary to exchange this
33 information.

34 5. "Biometric data" means any physical characteristics, including
35 fingerprints and palm prints and face, tattoo and iris images.

36 6. "Booking agency" means the county sheriff or, if a person is
37 booked into a municipal jail, the municipal law enforcement agency.

38 7. "Central state repository" means the central location within the
39 department for the collection, storage and dissemination of Arizona
40 criminal history records and related criminal justice information.

41 8. "Criminal history record information" and "criminal history
42 record" means information that is collected by criminal justice agencies
43 on individuals and that consists of identifiable descriptions and
44 notations of arrests, detentions, indictments and other formal criminal
45 charges, and any disposition arising from those actions, sentencing,
46 formal correctional supervisory action and release. Criminal history
47 record information and criminal history record do not include

1 identification information to the extent that the information does not
2 indicate involvement of the individual in the criminal justice system or
3 information relating to juveniles unless they have been adjudicated as
4 adults.

5 9. "Criminal justice agency" means either:

6 (a) A court at any governmental level with criminal or equivalent
7 jurisdiction, including courts of any foreign sovereignty duly recognized
8 by the federal government.

9 (b) A government agency or subunit of a government agency that is
10 specifically authorized to perform as its principal function the
11 administration of criminal justice pursuant to a statute, ordinance or
12 executive order and that allocates more than fifty percent of its annual
13 budget to the administration of criminal justice. This subdivision
14 includes agencies of any foreign sovereignty duly recognized by the
15 federal government.

16 10. "Criminal justice information" means information that is
17 collected by criminal justice agencies and that is needed for the
18 performance of their legally authorized and required functions, such as
19 criminal history record information, citation information, stolen property
20 information, traffic accident reports, wanted persons information and
21 system network log searches. Criminal justice information does not
22 include the administrative records of a criminal justice agency.

23 11. "Disposition" means information disclosing that a decision has
24 been made not to bring criminal charges or that criminal proceedings have
25 been concluded or information relating to sentencing, correctional
26 supervision, release from correctional supervision, the outcome of an
27 appellate review of criminal proceedings or executive clemency.

28 12. "Dissemination" means the written, oral or electronic
29 communication or transfer of criminal justice information to individuals
30 and agencies other than the criminal justice agency that maintains the
31 information. Dissemination includes the act of confirming the existence
32 or nonexistence of criminal justice information.

33 13. "Management control":

34 (a) Means the authority to set and enforce:

35 (i) Priorities regarding development and operation of criminal
36 justice information systems and programs.

37 (ii) Standards for the selection, supervision and termination of
38 personnel involved in the development of criminal justice information
39 systems and programs and in the collection, maintenance, analysis and
40 dissemination of criminal justice information.

41 (iii) Policies governing the operation of computers, circuits and
42 telecommunications terminals used to process criminal justice information
43 to the extent that the equipment is used to process, store or transmit
44 criminal justice information.

45 (b) Includes the supervision of equipment, systems design,
46 programming and operating procedures necessary for the development and
47 implementation of automated criminal justice information systems.

1 14. "Process control number" means the Arizona automated
2 fingerprint identification system number that attaches to each arrest
3 event at the time of fingerprinting and that is assigned to the arrest
4 fingerprint card, disposition form and other pertinent documents.

5 15. "Rap back services" means real-time or near real-time
6 notifications of activity, such as arrests on an individual, for
7 authorized criminal justice or noncriminal justice purposes in which
8 continuous evaluation of the individual's criminal history is required.

9 16. "Secondary dissemination" means the dissemination of criminal
10 justice information from an individual or agency that originally obtained
11 the information from the central state repository or through the Arizona
12 criminal justice information system to another individual or agency.

13 17. "Sexual orientation" means consensual homosexuality or
14 heterosexuality.

15 18. "Subject of record" means the person who is the primary subject
16 of a criminal justice record.

17 Enroll and engross to conform

18 Amend title to conform

JULIE WILLOUGHBY

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